

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

SUMMONS

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Z.S. an infant under the age of 18 years,
by his Mother and Natural Guardian,
MARCELLA WATT, and MARCELLA
WATT, individually,

Plaintiff designates NEW YORK
COUNTY as the place of trial

The basis of venue is: Place
of Occurrence

Plaintiff(s),

Plaintiff's Residence:
127 East 107th Street, Apt. 506
New York, NY 10029

-against-

THE CITY OF NEW YORK, NEW
YORK CITY POLICE DETECTIVE
CHRISTOPHER M. KELLEY, Tax Registry
No.: 944695; NEW YORK CITY POLICE
DETECTIVE ADAM J. LANDESBURG,
Tax Registry No.: 949195; "JOHN DOE(S)/
JANE DOE(S) 1-10," said names being
fictitious, as the actual names and
identifications of said individual police
officers, employed by The City of New
York and/or The New York City Police
Department, are unknown at present,

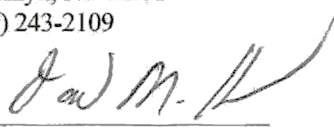
Defendant(s).

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To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, NY
June 6, 2023

DAVID M. HARRISON, ESQ.
Attorney for Plaintiff
Office & P.O. Address
48 Willoughby Street
Brooklyn, NY 11201
(718) 243-2109

By: 
David M. Harrison, Esq.

Defendant(s)' address(es):

THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007;

NEW YORK CITY POLICE OFFICER CHRISTOPHER M. KELLEY, TAX REGISTRY NO.: 944695,
1 Police Plaza, New York, NY 10038;

NEW YORK CITY POLICE OFFICER ADAM J. LANDESBURG, Tax Registry No.: 949195,
1 Police Plaza, New York, NY 10038

Upon your failure to appear, judgment will be taken against you by default, for an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction, and which warrants the jurisdiction of this Court, with interest thereupon, and including the costs of this action.

****THIS ACTION FALLS WITHIN ONE OR MORE OF THE EXCEPTIONS SET FORTH IN
CPLR.1602**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

Z.S., an infant under the age of 18 years, by his
Mother and Natural Guardian, MARCELLA
WATT, and MARCELLA WATT, individually,

Plaintiff(s)

-against-

THE CITY OF NEW YORK; NEW YORK
CITY POLICE DETECTIVE CHRISTOPHER
M. KELLEY, Tax Registry No.: 944695;
NEW YORK CITY POLICE DETECTIVE
ADAM J. LANDESBURG, Tax Registry No.:
949195; "JOHN DOE(S)/JANE DOE(S) 1-10,"
said names being fictitious, as the actual
names and identifications of said individual
police officers, employed by The City of New
York and/or The New York City Police
Department, are unknown at present,

Defendant(s).

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Plaintiffs, by their attorney, **DAVID M. HARRISON, ESQ.**, complaining of the
defendants, respectfully sets forth and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION
IN BEHALF OF THE INFANT PLAINTIFF,
Z.S., BY HIS MOTHER AND NATURAL
GUARDIAN, MARCELLA WATT, AGAINST
THE HEREIN NAMED DEFENDANTS:**

FIRST: That at all times hereinafter mentioned and prior thereto, the infant plaintiff,
Z.S., and his Mother and Natural Guardian, MARCELLA WATT, were residents of the City,
County and State of New York.

SECOND: That at all times hereinafter mentioned and prior thereto, the defendant, THE CITY OF NEW YORK (hereinafter referred to as “defendant NYC”), was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

THIRD: That at all times hereinafter mentioned and prior thereto, a Department of Police, commonly known and designated as “The New York City Police Department,” was established by defendant NYC, and is maintained by that defendant as a constituent department or agency

FOURTH: That at all times hereinafter mentioned and prior thereto, defendant NYC has established and maintained The New York City Police Department, as a constituent department or agency of said defendant.

FIFTH: That at all times hereinafter mentioned and prior thereto, defendant NYC was and is a municipal entity created and authorized under the laws of the State of New York. Said defendant was and is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant NYC assumes the risks incidental to the maintenance of a police force and the employment of police officers/detectives as said risk attaches to the public consumers of the services provided by The New York City Police Department.

SIXTH: That at all times hereinafter mentioned and prior thereto, defendant NYC was and is a municipal entity created and authorized under the laws of the State of New York. Said defendant was and is authorized to maintain a police department, commonly known and designated as The New York City Police Department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant NYC assumes the risks

incidental to the maintenance of a police force and the employment of police officers/ detectives as said risk attaches to the public consumers of the services provided by The New York City Police Department.

SEVENTH: That at all times hereinafter mentioned and prior thereto, defendant NYC, its agents, servants, employees, representatives, and others on said defendant's behalf, operated, supervised, directed, maintained, monitored, oversaw and controlled The New York City Police Department, including all police officers and detectives thereof.

EIGHTH: That at all times hereinafter mentioned and prior thereto, the defendant, NEW YORK CITY POLICE DETECTIVE CHRISTOPHER M. KELLEY, Tax Registry No.: 944695 (hereinafter referred to as "defendant KELLEY"), was employed by defendant NYC, as a police officer and/or detective with The New York City Police Department.

NINTH: That at all times hereinafter mentioned and prior thereto, the defendant, NEW YORK CITY POLICE DETECTIVE ADAM J. LANDESBURG, Tax Registry No.: 949195 (hereinafter referred to as "defendant LANDESBURG"), was employed by defendant NYC, as a police officer and/or detective with The New York City Police Department.

TENTH: That at all times hereinafter mentioned and prior thereto, the defendants, "JOHN DOE(S)/JANE DOE(S) 1-10, said names being fictitious, as the actual names and identifications of said individual police officers are unknown at present (hereinafter referred to as "JOHN DOE(S)/JANE DOE(S)"), were employed by defendant NYC, as police officers/ detectives with The New York City Police Department.

ELEVENTH: That a Notice of Claim was duly served and filed with the office of the Comptroller/Comptroller of the City of New York, pursuant to the applicable provisions of the General Municipal Law, which Notice of Claim was timely served and filed within ninety (90)

days of the occurrence upon which this action is based, and before the commencement of the action, and this action was commenced within one year and ninety days after the date of accrual of this action.

TWELFTH: That a Notice of Claim was duly served and filed with the office of the Comptroller/Comptroller of the City of New York, which Notice of Claim was timely served and filed within ninety (90) days of the occurrence upon which this action is based, and before the commencement of the action, and this action was commenced within one year and ninety days after the accrual of this cause of action, and as such, plaintiffs have satisfied all conditions precedent to lawful commencement of the within action against the defendants.

THIRTEENTH: That pursuant to the applicable provisions of the General Municipal Law, both the infant plaintiff, Z.S., and the plaintiff, MARCELLA WATT, appeared for a 50-h hearing conducted by and/or on behalf of defendant NYC prior to the time of commencement of the subject action.

FOURTEENTH: That the defendants have failed and refused to pay and/or adjust the claim within the statutory period of time following the happening of the event upon which the claim is based.

FIFTEENTH: That this action was commenced within one year and/or one year and ninety days after the happening of the event upon which the claim is based.

SIXTEENTH: That at all times hereinafter mentioned, defendant KELLEY was acting within the scope of his employment as a police officer and/or detective with The New York City Police Department, a constituent agency and/or department of defendant NYC.

SEVENTEENTH: That at all times hereinafter mentioned, defendant KELLEY was acting under color of law and authority as a police officer and/or detective with The New

York City Police Department, a constituent agency and/or department of defendant NYC.

EIGHTEENTH: That at all times hereinafter mentioned, defendant KELLEY was acting within the scope of his employment as a police officer and/or detective with The New York City Police Department, pursuant to his employment with defendant NYC.

NINETEENTH: That at all times hereinafter mentioned, defendant KELLEY was acting under color of law and authority as a police officer and/or detective with The New York City Police Department, pursuant to his employment with defendant NYC.

TWENTIETH: That at all times hereinafter mentioned, defendant LANDESBURG was acting within the scope of his employment as a police officer and/or detective with The New York City Police Department, a constituent agency and/or department of defendant NYC.

TWENTY-FIRST: That at all times hereinafter mentioned, defendant LANDESBURG was acting under color of law and authority as a police officer and/or detective with The New York City Police Department, a constituent agency and/or department of defendant NYC.

TWENTY-SECOND: That at all times hereinafter mentioned, defendant LANDESBURG was acting within the scope of his employment as a police officer and/or detective with The New York City Police Department, pursuant to his employment with defendant NYC.

TWENTY-THIRD: That at all times hereinafter mentioned, defendant LANDESBURG was acting under color of law and authority as a police officer and/or detective with The New York City Police Department, pursuant to his employment with defendant NYC.

TWENTY-FOURTH: That at all times hereinafter mentioned, defendants JOHN DOE(S)/ JANE DOE(S) were acting within the scope of their employment as police officers

and/or detectives with The New York City Police Department, a constituent agency and/or department of defendant NYC.

TWENTY-FIFTH: That at all times hereinafter mentioned, defendants JOHN DOE(S)/JANE DOE(S) were acting under color of law and authority as police officers and/or detectives with The New York City Police Department, a constituent agency and/or department of defendant NYC.

TWENTY-SIXTH: That at all times hereinafter mentioned, defendants JOHN DOE(S)/JANE DOE(S) were acting within the scope of their employment as police officers and/or detectives with The New York City Police Department, pursuant to their employment with defendant NYC.

TWENTY-SEVENTH: That at all times hereinafter mentioned, defendants JOHN DOE(S)/JANE DOE(S) were acting under color of law and authority as police officers and/or detectives with The New York City Police Department, pursuant to their employment with defendant NYC.

TWENTY-EIGHTH: That at all times hereinafter mentioned, defendant NYC employed defendant KELLEY.

TWENTY-NINTH: That at all times hereinafter mentioned, defendant NYC employed defendant KELLEY, in the capacity of a police officer and/or detective with The New York City Police Department.

THIRTIETH: That at all times hereinafter mentioned, defendant NYC employed defendant LANDESBURG.

THIRTY-FIRST: That at all times hereinafter mentioned, defendant NYC employed defendant LANDESBURG, in the capacity of a police officer and/or detective

MARCELLA WATT, that a warrant had been issued for the arrest of the infant plaintiff, Z.S.

THIRTY-EIGHTH: That following advisement by defendants LANDESBURG and JOHN DOE(S)/JANE DOE(S) as to said arrest warrant issued for the infant plaintiff's arrest, it was agreed between defendant LANDESBURG and the plaintiff, MARCELLA WATT, that plaintiffs would subsequently appear at the 9th Precinct for The New York City Police Department.

THIRTY-NINTH: That the plaintiffs appeared at the 9th Precinct for The New York City Police Department on June 6, 2022, at approximately 9:00 A.M.

FORTIETH: That in between the time of advisement on June 2, 2022, by defendants LANDESBURG and JOHN DOE(S)/JANE DOE(S) as to said warrant issued for the infant plaintiff's arrest; and the time of plaintiffs' appearance at the 9th Precinct for The New York City Police Department on June 6, 2022; the plaintiff, MARCELLA WATT, was continually harassed with telephone calls by The New York City Police Department concerning the infant plaintiff's pending arrest.

FORTY-FIRST: That on June 6, 2022, upon their arrival at the 9th precinct station house, at approximately 9:00 A.M., the infant plaintiff, Z.S., in the presence of his mother, the plaintiff, MARCELLA WATT, was detained, confined and imprisoned for a period of in excess of eleven hours, by defendant NYC's police officers, including defendants KELLEY and JOHN DOE(S)/JANE DOE(S), in connection with two alleged prior incidents for which plaintiffs were told the infant plaintiff was going to be arrested for: with one of said incidents allegedly involving a murder in the Chinatown section of Manhattan; and, the second prior incident allegedly involving a murder in Bronx County.

FORTY-SECOND: That during said period of detainment, confinement and imprisonment in excess of eleven hours, occurring on June 6, 2022, at the 9th Precinct stationhouse, the infant plaintiff was continually handcuffed by defendants KELLEY and JOHN DOE(S)/JANE DOE(S), while placed in a small room.

FORTY-THIRD: That at no time during said period of detainment, confinement and imprisonment by defendants KELLEY and JOHN DOE(S)/JANE DOE(S), occurring on June 6, 2022, at the 9th Precinct for The New York City Police Department, were the plaintiffs ever informed as to the basis of the infant plaintiff's involvement of the two claimed incidents for which the plaintiffs were informed the infant plaintiff was going to be arrested for.

FORTY-FOURTH: That at no time during said period of detainment, confinement and imprisonment by defendants KELLEY and JOHN DOE(S)/JANE DOE(S) occurring on June 6, 2022, at the 9th Precinct for The New York City Police Department, were the plaintiffs ever provided with documents or papers for their review concerning the two claimed incidents for which the plaintiffs were informed the infant plaintiff was going to be arrested for.

FORTY-FIFTH: That after being held against his will and without his consent for in excess of eleven hours by defendants KELLEY and JOHN DOE(S)/JANE DOE(S), on June 6, 2022, at the 9th Precinct for The New York City Police Department, the infant plaintiff was released from police custody, without the infant plaintiff or his mother ever having been provided with any explanation for why the infant plaintiff had been confined, detained and imprisoned for said period of time; or why a warrant had been issued for his arrest.

FORTY-SIXTH: That after being held against his will and without his consent by defendants KELLEY and JOHN DOE(S)/JANE DOE(S), for in excess of eleven hours, on June 6, 2022, at the 9th Precinct for the New York City Police Department, the infant plaintiff was released from police custody, with no formal arrest having been made; and with no criminal charges assessed against the infant plaintiff, and with no criminal court action scheduled, despite the period of excessive detainment, confinement and imprisonment at the 9th Precinct, by defendant NYC's arresting police officers and/or detectives, including defendants KELLEY and JOHN DOE(S)/JANE DOE(S).

FORTY-SEVENTH: That defendants NYC, its agents, servants, employees, representatives and/others action upon defendants' behalf, including defendants KELLEY, LANDESBURG and JOHN DOE(S)/JANE DOE(S), intended to confine the infant plaintiff, Z.S., in that the plaintiffs were conscious of the infant plaintiff's confinement. Plaintiffs did not consent to the confinement; and the confinement was not otherwise privileged.

FORTY-EIGHTH: At the time of his unlawful detainment, confinement and imprisonment, the infant plaintiff, Z.S., had not committed any illegal act or crime.

FORTY-NINTH: At the time of his unlawful detention, confinement and imprisonment, defendants knew, or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned arrest warrant, and the subsequent unlawful detention, confinement and imprisonment of the infant plaintiff, was false and without probable cause.

FIFTIETH: That said false and wrongful detention, confinement and imprisonment of the infant plaintiff, Z.S., caused the infant plaintiff to suffer serious,

severe and permanent personal injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation.

FIFTY-FIRST: The infant plaintiff, Z.S., was in police custody, was unlawfully detained, confined and imprisoned for several hours by police officers and/or detectives employed by defendant NYC, including defendants KELLEY, and JOHN DOE(S)/JANE DOE(S), in connection with an arrest warrant wrongfully and falsely procured by defendants LANDESBURG and JOHN DOE(S)/JANE DOE(S), without probable cause or reasonable basis.

FIFTY-SECOND: The infant plaintiff, Z.S., was in police custody, and was unlawfully detained and falsely imprisoned for a period in excess of eleven hours. The unlawful search and seizure was without due process of law and was done to deprive the infant plaintiff of his rights as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

FIFTY-THIRD: That it is alleged that defendants NYC, KELLEY, LANDESBURG and JOHN DOE(S)/JANE DOE(S) failed to investigate the facts, and therefore, maliciously and intentionally detained, falsely detained, falsely imprisoned, and humiliated the infant plaintiff, Z.S., in violation of his constitutional rights.

FIFTY-FOURTH: As a direct result of defendants' actions, the infant plaintiff, Z.S., suffered and continues to suffer mental anguish, deprivation of liberty and privacy, humiliation, shame, emotional distress and damage to his reputation, some of which may be permanent.

FIFTY-FIFTH: The infant plaintiff suffered greatly and was emotionally traumatized by this excessive detention, confinement and imprisonment, as well as by

the issuance of an arrest warrant for crimes in which he had no involvement, and which warrant was procured by the defendants in the absence of probable cause or reasonable basis.

FIFTY-SIXTH: That the false and wrongful detention, confinement and imprisonment of the infant plaintiff, Z.S., arose without any legitimate cause, basis or justification on the part of defendants herein, and were intentional, malicious, reckless and in bad faith.

FIFTY-SEVENTH: As a direct and proximate result of defendants' herein referenced actions, the infant plaintiff, Z.S., was deprived of his rights, privileges and immunities under the Fourth and Fourteenth Amendment to the United States Constitution and the laws of the City and State of New York.

FIFTY-EIGHTH: As a direct and proximate result of defendants' herein referenced actions, the infant plaintiff, Z.S., was deprived of his rights, privileges and immunities, including violation of his civil rights, pursuant to 42 U.S.C. § 1983, 42 U.S.C. § 1981, 42 U.S.C. § 1985 and 42 U.S.C. § 1986

FIFTY-NINTH: As a result of the foregoing, the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, demands judgment against the defendants, THE CITY OF NEW YORK; KELLEY; LANDESBERG; and JOHN DOE(S)/JANE DOE(S), in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A SECOND CAUSE OF ACTION
IN BEHALF OF THE INFANT PLAINTIFF,
Z.S., BY HIS MOTHER AND NATURAL
GUARDIAN, MARCELLA WATT, AGAINST
THE HEREIN NAMED DEFENDANTS:**

SIXTIETH: The infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered “ONE” through “FIFTY-EIGHTH,” above, with the same force and effect as if fully set forth herein.

SIXTY-FIRST: That defendants’ said wrongful actions herein were perpetrated upon the infant plaintiff, Z.S., without any incitement or provocation on the part of the plaintiffs.

SIXTY-SECOND: As a result of the above-mentioned false and wrongful detainment, confinement and imprisonment of the infant plaintiff on June 6, 2022, as well as the falsely and wrongfully procured arrest warrant resulting in said false and wrongful detainment, confinement and imprisonment, the infant plaintiff, Z.S., was caused to sustain serious, severe and permanent personal injuries, inclusive of psychological and emotional injury; was injured internally and externally; became sick, sore, lame and disabled; and was caused to suffer, and still suffers severe and permanent injuries, and upon information and belief, will continue to suffer pain and discomfort; was caused to obtain medical care and attention in an attempt to cure herself of said injuries.

SIXTY-THIRD: As a result of the foregoing, the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, demands judgment against the defendants, THE CITY OF NEW YORK; KELLEY; LANDESBURG; and JOHN DOE(S)/JANE DOE(S), in an amount which exceeds the jurisdictional limits of all lower

courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A THIRD CAUSE OF ACTION
IN BEHALF OF THE INFANT PLAINTIFF,
Z.S., BY HIS MOTHER AND NATURAL
GUARDIAN, MARCELLA WATT, AGAINST
THE HEREIN NAMED DEFENDANTS:**

SIXTY-FOURTH: The infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered “ONE” through “FIFTY-EIGHTH”; and “SIXTIETH” through “SIXTY-SECOND,” above, with the same force and effect as if fully set forth herein.

SIXTY-FIFTH: Defendants deprived the infant plaintiff, Z.S., of his liberty, in violation of his civil and constitutional rights, pursuant to 42 U.S.C. § 1983; 42 U.S.C. § 1981; 42 U.S.C. § 1985 and 42 U.S.C. § 1986, as well as the Fourth and Fourteenth Amendments to the United States Constitution, and the Constitution of the State of New York.

SIXTY-SIXTH: Defendants, by their actions, violated the civil and constitutional rights of the infant plaintiff, Z.S., pursuant to 42 U.S.C. § 1983; 42 U.S.C. § 1981; 42 U.S.C. § 1985 and 42 U.S.C. § 1986, as well as the Fourth and Fourteenth Amendments to the United States Constitution, and the Constitution of the State of New York.

SIXTY-SEVENTH: Defendants’ actions were taken under the color of law and would not have existed but for said defendants using their official power.

SIXTY-EIGHTH: The supervisors and policy making officers of defendant NYC, as a matter of policy, have failed to take steps to terminate the above-detailed practices, and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

SIXTY-NINTH: Defendant NYC has failed to properly or effectively train their employees, including defendant's police officers and detectives, with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

SEVENTIETH: Defendant NYC has sanctioned the above-described policy and practices through the deliberate indifference to the effect of said policy upon the constitutional and civil rights of the infant plaintiff, Z.S., and others similarly situated.

SEVENTY-FIRST: Defendants' motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

SEVENTY-SECOND: As a result of the foregoing, the infant plaintiff, Z.S., has suffered serious and severe emotional distress, personal injuries, and loss to his reputation

SEVENTY-THIRD: As a result of the foregoing, the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, demands judgment against the defendants, THE CITY OF NEW YORK; KELLEY; LANDESBERG; and JOHN DOE(S)/JANE DOE(S), in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A FOURTH CAUSE OF ACTION
IN BEHALF OF THE INFANT PLAINTIFF,
Z.S., BY HIS MOTHER AND NATURAL
GUARDIAN, MARCELLA WATT, AGAINST
THE DEFENDANT, THE CITY OF NEW YORK**

SEVENTY-FOURTH: The infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, repeats, reiterates and realleges each and every allegation

contained in the paragraphs numbered “ONE” through “FIFTY-EIGHTH,”; “SIXTIETH” through “SIXTY-SECOND”; and “SIXTY-FOURTH” through “SEVENTY-SECOND,” above, with the same force and effect as if fully set forth herein.

SEVENTY-FIFTH: Defendant NYC hired and retained in its employ police officers and detectives, including defendants KELLEY, LANDESBURG and JOHN DOES/JANE DOES, with knowledge that said police officers/detectives lacked the experience and/or qualifications to be employed by defendant NYC, and therefore, were unfit to be police officers/detectives.

SEVENTY-SIXTH: Defendant NYC hired and retained in its employ police officers/detectives, including defendants KELLEY, LANDESBURG and JOHN DOE(S)/JANE DOE(S), with knowledge that said police officers/detectives lacked the department to be employed by defendant NYC, and were, therefore, unfit to be police officers/detectives.

SEVENTY-SEVENTH: Defendant NYC hired and retained in its employ police officers/detectives, including defendants KELLEY, LANDESBURG and JOHN DOE(S)/JANE DOE(S), with knowledge that said police officers/detectives lacked the experience and/or qualifications to be employed by defendant NYC, and, therefore, were unfit to be police officers.

SEVENTY-EIGHTH: Defendant NYC hired and retained in its employ police officers/detectives, including defendants KELLEY, LANDESBURG and JOHN DOE(S)/JANE DOE(S), with knowledge that said police officers/detectives had vicious propensities and were, therefore, unfit to be police officers.

SEVENTY-NINTH: As a result of the foregoing, the infant plaintiff, Z.S., has suffered serious and severe emotional distress, personal injuries, inclusive of psychological

and emotional injury; violation of constitutional and civil rights; and loss to his reputation.

EIGHTIETH: As a result of the foregoing, the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, demands judgment against the defendant, THE CITY OF NEW YORK, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A FIFTH CAUSE OF ACTION
IN BEHALF OF THE INFANT PLAINTIFF,
Z.S., BY HIS MOTHER AND NATURAL
GUARDIAN, MARCELLA WATT, AGAINST
THE DEFENDANTS HEREIN:**

EIGHTY-FIRST: The infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered “ONE” through “FIFTY-EIGHTH,”; “SIXTIETH” through “SIXTY-SECOND”; “SIXTY-FOURTH” through “SEVENTY-SECOND”; and “SEVENTY- FOURTH” through “SEVENTY-NINTH,” above, with the same force and effect as if fully set forth herein.

EIGHTY-SECOND: Defendants, their agents, servants and/or employees negligently, carelessly and recklessly performed their police duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have used under similar circumstances.

EIGHTY-THIRD: That defendant NYC, its agents, servants, employees, representatives and/or others on said defendant’s behalf, negligently failed to provide proper supervision and oversight of defendant’s police officers, including defendants

KELLEY, LANDESBURG and JOHN DOE(S)/JANE DOE(S), resulting in said defendant police officers being unqualified and not fully capable of performing their required police duties.

EIGHTY-FOURTH: That the aforementioned occurrences: to wit: the false and wrongful detainment, confinement, and imprisonment of the infant plaintiff, Z.S., as well as the false and wrongful procurement of a warrant for the infant plaintiff's arrest, thereby causing the infant plaintiff physical injury; pain and suffering, inclusive of psychological and emotional injury; the violation of plaintiff's constitutional and civil rights; and the resulting injuries to the mind and the body of the plaintiff therefrom, as well as the infant plaintiff's loss of reputation, were caused solely by reason of the negligence of the defendants, their agents, servants, employees, representatives and others acting on behalf of the defendants, without any negligence on the part of the plaintiffs herein.

EIGHTY-FIFTH: As a result of the foregoing, the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, demands judgment against the defendants, THE CITY OF NEW YORK; KELLEY; LANDESBURG; and JOHN DOE(S)/JANE DOE(S), in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A SIXTH CAUSE OF ACTION
IN BEHALF OF THE INFANT PLAINTIFF,
Z.S., BY HIS MOTHER AND NATURAL
GUARDIAN, MARCELLA WATT, AGAINST
THE DEFENDANTS HEREIN:**

EIGHTY-SIXTH: The infant plaintiff, Z.S., by his Mother and Natural Guardian,

MARCELLA WATT, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered “ONE” through “FIFTY-SEVENTH”; “FIFTY-NINTH” through “SIXTY-FIRST”; “SIXTY-THIRD” through “SEVENTY-SECOND”; “SEVENTY-FOURTH” through “SEVENTY-NINTH”; and “EIGHTY-FIRST” through “EIGHTY-FOURTH” above, with the same force and effect as if fully set forth herein.

EIGHTY-SEVENTH: Defendants’ conduct towards Plaintiff was so outrageous and shocking that it exceeded all reasonable bounds of decadency tolerated by the average member of the community.

EIGHTY-EIGHTH: Defendants acted with the desire to cause the infant plaintiff, J.S., mental distress and physical distress and pain or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

EIGHTY-NINTH: Defendants acted with utter disregard of the consequences of their actions.

NINETIETH: As a result of the foregoing, the infant plaintiff, Z.S., has sustained severe and debilitating emotional and psychological distress, anguish, anxiety, fear, humiliation and soreness.

NINETY-FIRST: As a result of the foregoing, the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, demands judgment against the defendants, THE CITY OF NEW YORK; KELLEY; LANDESBERG; and JOHN DOE(S)/JANE DOE(S), in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A SEVENTH CAUSE OF ACTION
IN BEHALF OF THE INFANT PLAINTIFF,
Z.S., BY HIS MOTHER AND NATURAL
GUARDIAN, MARCELLA WATT, AGAINST
THE DEFENDANTS HEREIN:**

NINETY-SECOND: The infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, repeats, reiterates and realleges each and every Allegation contained in the paragraphs numbered “ONE” through “FIFTY-SEVENTH”; “FIFTY-NINTH” through “SIXTY-FIRST”; “SIXTY-THIRD” through “SEVENTY-SECOND”; “SEVENTY-FOURTH” through “SEVENTY-NINTH”; “EIGHTY-FIRST” through “EIGHTY-FOURTH”; and “EIGHTY-SIXTH” through “NINETIETH,” above, with the same force and effect as if fully Set forth herein.

NINETY-THIRD: Upon information and belief, defendants NYC, KELLEY, LANDESBERG, and JOHN DOE(S)/JANE DOE(S), in their official capacity and individual capacity as New York City police officers and detectives, by their conduct and under color of state law, it is believed that said defendant officers each had opportunity to intercede on behalf of the infant plaintiff, Z.S., to prevent said false and wrongful detainment, confinement and imprisonment, and falsely procured arrest warrant, due to their intentional conduct or deliberate indifference declined or refused to do so.

NINETY-FOURTH: As a result of the foregoing, the infant plaintiff, Z.S., has sustained severe and debilitating emotional and psychological distress, anguish, anxiety, fear, humiliation and soreness.

NINETY-FIFTH: As a result of the foregoing, the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, demands judgment against the

defendants, THE CITY OF NEW YORK; KELLEY; LANDESBURG; and JOHN DOE(S)/JANE DOE(S), in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
IN BEHALF OF THE PLAINTIFF,
MARCELLA WATT, AGAINST THE
DEFENDANTS HEREIN:**

NINETY-SIXTH: The infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered “ONE” through “FIFTY-SEVENTH”; “FIFTY-NINTH” through “SIXTY-FIRST”; “SIXTY-THIRD” through “SEVENTY-SECOND”; “SEVENTY-FOURTH” through “SEVENTY-NINTH”; “EIGHTY-FIRST” through “EIGHTY-FOURTH”; “EIGHTY-SIXTH” through “NINETIETH”; and “NINETY-SECOND” through “NINETY-FIFTH,” above, with the same force and effect as if fully set forth herein.

NINETY-SEVENTH: That the plaintiff, MARCELLA WATT, is an adult resident of the City, County and State of New York.

NINETY-EIGHTH: That the infant plaintiff, Z.S., was a minor as of the date of the subject incident complained of herein, having been younger than 18 years of age at such time.

NINETY-NINTH: That the foregoing and the injuries resulting therefrom to the infant plaintiff, Z.S., were caused solely by reason of the actions of the defendants herein; and without any actions on the part of the plaintiffs contributing thereto.

ONE-HUNDREDTH: That as the result of the actions of the defendants herein, the infant plaintiff, Z.S., sustained significant, permanent and serious personal injuries,

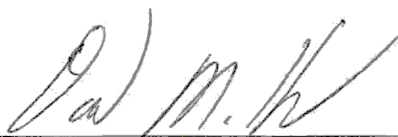
inclusive of emotional and psychological injuries, and incurred and/or will incur expenses for medical attention, treatment and care, having had and will continue to be unable to attend to usual duties, occupation, functions and/or activities before and subsequent hereto.

ONE-HUNDRED AND FIRST: That by reason of the foregoing, the plaintiff, MARCELLA WATT has incurred medical/healthcare expenses by reason of the permanent, serious and severe pain, suffering and personal injuries as defined in, suffered by the infant plaintiff, Z.S.

WHEREFORE, the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, hereby demands judgment against the defendants herein, on the First Cause of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, hereby demands judgment against the defendants herein, on the Second Cause of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; , the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, hereby demands judgment against the defendants herein, on the Third Cause of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, hereby demands judgment against the defendant, THE CITY OF NEW YORK, on the Fourth Cause of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; the infant plaintiff, Z.S., by his Mother and Natural

Guardian, MARCELLA WATT, hereby demands judgment against the defendants herein, on the Fifth Cause of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, hereby demands judgment against the defendants herein, on the Sixth Cause of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, hereby demands judgment against the defendants herein, on the Seventh Cause of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; he plaintiff, MARCELLA WATT, hereby demands judgment against the defendants herein, on the Eighth Cause of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; together with costs and disbursements of this action.

Dated: Brooklyn, New York
June 6, 2023



DAVID M. HARRISON, ESQ.

Attorney for the infant plaintiff,
Z.S., by his Mother and Natural
Guardian, MARCELLA WATT,
and MARCELLA WATT, individually
Office & P.O. Address
48 Willoughby Street
Brooklyn, NY 11201
Tel: (718) 243-2109

ATTORNEY VERIFICATION

STATE OF NEW YORK }

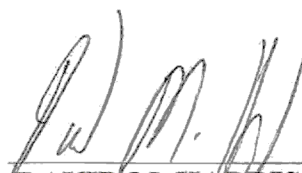
ss.:

COUNTY OF NEW YORK }

The undersigned, an attorney admitted to practice in the Courts of New York State, hereby affirms, subject to penalties of perjury: I am the attorney of record for the infant plaintiff, Z.S., by his Mother and Natural Guardian, MARCELLA WATT, and MARCELLA WATT, individually, in the within action; has read the foregoing COMPLAINT, and knows the contents thereof; same is true to affirmant's own knowledge, except as to the matters therein alleged on information and belief, and that as to those matters alleged on information and belief, affirmant believes them to be true. The reason this verification is made by affirmant, and not plaintiffs, is because the plaintiffs do not reside in the county wherein counsel has its office to wit, the county of Kings. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are as follows: Based upon the contents of my file.

The undersigned, an attorney admitted to practice in the Courts of New York State, and the attorney for the plaintiffs in this action, hereby certifies, pursuant to Section 130-1.1-a of the Rules of the Chief Administrator (NYCRR) that to the best of my knowledge, information and belief, after an inquiry reasonable under the circumstances, that the presentation of the Complaint in this action, or the contentions therein, are not frivolous as defined in subsection (c) of Sec. 130-1.1 of the Rules of the Chief Administrator (22NYCRR).

Dated: Brooklyn, New York
June 6, 2023



DAVID M. HARRISON, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNY OF NEW YORK

Index No.:

Z.S., an infant under the age of 18 years, by his
Mother and Natural Guardian, MARCELLA
WATT, and MARCELLA WATT, individually,

Plaintiff(s)

-against-

THE CITY OF NEW YORK; NEW YORK
CITY POLICE DETECTIVE CHRISTOPHER
M. KELLEY, Tax Registry No.: 944695;
NEW YORK CITY POLICE DETECTIVE
ADAM J. LANDESBURG, Tax Registry No.:
949195; "JOHN DOE(S)/JANE DOE(S) 1-10,"
said names being fictitious, as the actual
names and identifications of said individual
police officers, employed by The City of New
York and/or The New York City Police
Department, are unknown at present,

Defendant(s).

SUMMONS & VERIFIED COMPLAINT

DAVID M. HARRISON, ESQ.
Attorney for the Plaintiffs
Office & P.O. Address
48 Willoughby Street
Brooklyn, New York 11201
(718) 243-2109

PLEASE TAKE NOTICE:

☐ Notice of Entry

that the within is a (certified) true copy of Order
the within named court on

duly entered in the office of the clerk of

☐ Notice of Settlement

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court, at
on 20 at M.